

		assume Mrs. Williams <i>was</i> in control or that the California Supreme just missed the applicability of section 945. In the present case, appellant Figueroa <i>is</i> in control of the property to be sold. Her ability to commit or allow waste of the property prior to sale – and during any stay on appeal – is thus manifest. On its face, then, Code of Civil Procedure section 917.4 applies. And, on its face, the opinion in <i>Williams v. Wells Fargo Bank & Union Trust Company</i> (1941) 17 Cal.2d 104 is not in conflict because there is nothing in that opinion that suggests Mrs. Williams was in a position to commit waste and thus implicate former section 945. Accordingly, the court finds there is no stay as a result of the appeal that stays the Partition Referee’s duties or his sale of the property.
56	<i>Off calendar</i>	
57	<i>Off calendar</i>	
58	<i>Off calendar</i>	
59	<i>Plane Fetch LLC vs. Ignite Enterprises, LLC</i>	The Court continues the motion to October 16, 2026, and directs counsel for the parties to meet and confer either in person or by telephone at a mutually convenient date within 20 days of this order to narrow the issues presented by the instant motions. The Court further orders counsel to prepare a joint statement of issues remaining